REPUBLIC OF THE PHILIPPINES
CITY OF DAVAO
OFFICE OF THE SANGGUNIANG PANLUNGSOD

Ordinance No. 158-05 Section 423

THE 2005 REVENUE CODE OF THE CITY OF DAVAO (PAYMENT UNDER PROTEST)

BE IT ORDAINED BY THE SANGGUNIANG PANLUNGSOD OF DAVAO CITY, IN SESSION ASSEMBLED, THAT:

SECTION 1. TITLE. — This Ordinance shall be known and cited as the '2005 Revenue Code of the City of Davao'.

SECTION 2. SCOPE AND APPLICATION. — This Code shall govern the levy, assessment, and collection of all city taxes, fees, and other charges within the territorial jurisdiction of Davao City.

SECTION 423. PAYMENT UNDER PROTEST. — No protest shall be entertained unless the taxpayers first pays the tax. There shall be annotated on the tax receipts the words 'paid under protest.' The protest in writing must be filed within thirty (30) days from payment of the tax the City Treasurer who shall decide the protest within sixty (60) days from receipt of the protest. In case the City Treasurer fails to decide within sixty (60) days from receipt of the protest, the taxpayer may appeal to the Regional Trial Court within thirty (30) days from the lapse of the sixty-day period, otherwise the assessment becomes final and executory.

SECTION 424. CIVIL REMEDIES FOR COLLECTION OF REVENUES. — The city taxes, fees, or other charges may be collected through the administrative remedies of distraint of personal property and levy upon real property or by judicial action in any court of competent jurisdiction.

SECTION 433. REPEALING CLAUSE. — All city ordinances, executive orders, rules and regulations or parts thereof which are inconsistent with this Code are hereby repealed or modified accordingly.

SECTION 434. EFFECTIVITY. — This Code shall take effect upon approval and publication as required by law.